

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE CHARLOTTE N. SWEENEY

Civil Action:	21-cv-02444-CNS-SKC	Date:	September 13, 2023
Courtroom Deputy:	Julie Dynes	Court Reporter:	Sarah Mitchell

<i>Parties</i>		<i>Counsel</i>
ERIC RAY	Plaintiff	<i>Joseph Sirchio</i>
v.		
AUTO-OWNERS INSURANCE COMPANY	Defendant	<i>Hannah McCalla</i>
		<i>Evan Stephenson</i>

COURTROOM MINUTES

JURY TRIAL DAY THREE

Court in Session: 8:34 a.m.

Appearance of counsel. Also present at the defense table is client representative Chris Hoag.

Discussion held on exhibits and witness testimony.

Jury present.

Plaintiff's witness, Chris Hoag, recalled and remains under oath.

8:35 a.m. Continued cross examination of Mr. Hoag by Mr. Stephenson.
Exhibits 66, 67, 68, 69, 70, 71, 73, 76, 77, 79 and 90 are admitted.

9:52 a.m. Redirect examination of Mr. Hoag by Mr. Sirchio.

10:12 a.m. Additional examination of Mr. Hoag by Mr. Stephenson.

Juror questions reviewed at the bench.

10:18 a.m. Juror questions asked of Mr. Hoag by the Court.

10:21 a.m. Court in recess – jury excused.

10:34 a.m. Court in session.

Argument given as to the defendant's Oral Motion for Judgment as a Matter of Law under Rule 50 by Ms. McCalla and Mr. Sirchio outside the presence of the jury.

As outlined on the record it is

ORDERED: Oral Motion for Judgment as a Matter of Law Under Rule 50 is GRANTED IN PART and DENIED IN PART.

Jury present.

Plaintiff rests.

Defendant's witness, Dr. Kathy McCranie, called and sworn.

10:59 a.m. Direct examination of Dr. McCranie by Ms. McCalla.
Exhibit 29 is admitted.

11:43 a.m. Cross examination of Dr. McCranie by Mr. Sirchio.

Jury excused.

Additional findings made by the Court as to the Oral Motion for Judgment as a Matter of Law.

11:48 a.m. Court in recess.

1:01 p.m. Court in session - jury present.

Defendant's witness, Karla Cosgrove, called and sworn.

1:02 p.m. Direct examination of Ms. Cosgrove by Mr. Stephenson.

1:25 p.m. Cross examination of Ms. Cosgrove by Mr. Sirchio.

Defense rests.

ORDERED: Evidence is CLOSED.

Jury excused.

Discussion held on jury instructions.

Oral argument given on the plaintiff's Oral Motion for Judgment as a Matter of Law Under Rule 50 as to affirmative defense.

As outlined on the record it is

ORDERED: The plaintiff's Oral Motion for Judgment as a Matter of Law Under Rule 50 is DENIED.

1:44 p.m. Court in recess.

1:58 p.m. Court in session.

Jury instructions reviewed and ruled upon as stated on the record.

2:12 p.m. Court in recess.

2:26 p.m. Court in session.

Discussion held on additional tendered and rejected instructions.

Jury present.

Jury instructed.

Bailiff sworn.

3:01 p.m. Closing argument by Mr. Sirchio.

3:20 p.m. Closing argument by Mr. Stephenson.

3:49 p.m. Rebuttal closing argument by Mr. Sirchio.

Jury excused to begin deliberations.

ORDERED: Lunch to be provided to jurors during deliberations.

3:58 p.m. Court in recess.

4:14 p.m. Court in session.

Jury will return tomorrow at 8:30 a.m. to continue deliberations.

Rejected jury instructions tendered to the Court.

Court in Recess: 4:17 p.m.

Trial continued.

Total time in Court: 05:33